

## 26NNCV03140 26NNCV03140

County: los-angeles

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Hearing Date: August 14, 2026

Case Name: Ella

Mirimanova vs. Jaguar Land Rover North America, LLC, a New Jersey Corporation,  
et al.

Case No.: 26NNCV03140

Motion: Demurrer

to Plaintiff's Complaint

Moving Party: Defendants Jaguar Land Rover North America,  
LLC, and Galpin Land Rover

Responding Party: None

Tentative Ruling: Overrule

### BACKGROUND

On April 22, 2026, Plaintiff Ella Mirimanova ("Plaintiff")  
filed a complaint against Defendants Jaguar Land Rover North America, LLC, Galpin  
Motors, Inc. dba Galpin Land Rover, and  
Does 1 through 20, alleging the following causes of action: (1) violation of  
Song-Beverly Act – Breach of Express Warranty; (2) violation of Song-Beverly  
Act – Breach of Implied Warranty; (3) violation of the Song-Beverly Act Section  
1793.2; and (4) negligent repair.

Defendants Jaguar Land Rover North America, LLC, and Galpin Motors, Inc dba Galpin Land Rover ("Defendants") now demur to the fourth cause of action.

No opposition was filed.

MOVING

PARTY POSITION

Defendants

argue that Plaintiff's negligent repair claim fails as matter of law because the complaint lacks specific details regarding the alleged negligence and because the claim is barred by the economic loss doctrine.

OPPOSITION

No opposition was filed.

REPLY

No reply was filed.

ANALYSIS

I. Legal

Standard

A. Demurrer

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc. §§ 422.10, 589; see, also, *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Donabedian*, supra, 116 Cal.App.4th at 994.)

The general rule is that the plaintiff need only allege

ultimate facts, not evidentiary facts. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.) “All that is required of a plaintiff, as a matter of pleading, even as against a special demurrer, is that his complaint set forth the essential facts of the case with reasonable precision and with sufficient particularity to acquaint the defendant with the nature, source and extent of his cause of action.” (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149, 156-157.)

In a demurrer, the court “may also look to exhibits attached to the complaint for operative facts. [Citation.] And because the ‘allegations that we accept as true necessarily include the contents of any exhibits attached to the complaint, ... in the event of a conflict between the pleading and an exhibit, the facts contained in the exhibit take precedence over and supersede any inconsistent or contrary allegations in the pleading.’ [Citation.]” (Nealy v. County of Orange (2020) 54 Cal.App.5th 594, 596–97.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

## II. Meet and Confer

Based on the declaration of Defendants’ counsel Bryan Roth, it does not appear that counsel for the parties met and conferred in person, via telephone, or by video conference. (See Roth Decl. ¶ 2.) Nevertheless, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc. § 430.41, subd. (a)(4).)

## III. Discussion

A claim for negligence requires the following elements: (1) a legal duty of care owed to a plaintiff, (2) a breach of that duty, (3) causation, and (4) the damages to plaintiff. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

“Ordinarily, negligence may be pleaded in general terms and the plaintiff need not specify the precise act or omission alleged to constitute the breach of duty.” (*Lopez v. S. Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795.) Although there are limits to the generality with which a plaintiff is permitted to plead this cause of action, “negligence may be alleged in general terms, without specific facts showing how the injury occurred.” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 527.) However, a plaintiff must allege “the plaintiff must indicate the acts or omissions which are said to have been negligently performed.” (Ibid.)

In liberally construing the alleged facts, the Court finds that Plaintiff sufficiently pleads a cause of action for negligent repair based on the alleged negligent attempts by Galpin Land Rover to repair her vehicle. (Compl. ¶¶ 11-15, 64–68.) Although Defendants argue that the negligence allegations are not sufficiently pleaded due to a lack of specific details, Plaintiff alleges that she delivered the vehicle to Galpin Land Rover for repairs on numerous occasions since September of 2023 and that Galpin Land Rover failed to properly repair the malfunctioning components of the vehicle in accordance with industry standards, resulting in damages to Plaintiff. (Ibid.) While far from a model pleading, the Court finds that the complaint sufficiently states all the elements of a negligent repair cause of action under the applicable standards.

Nor does the economic loss rule bar this claim, as a negligent failure to perform services under a contract may give rise to tort liability, including the negligent repair of a vehicle that is subject to a warranty. “A contract to perform services gives rise to a duty of care which requires that such services be performed in a competent and reasonable manner. A negligent failure to do so may be both a breach of contract and a tort. [Citation.] In such a hybrid circumstance, the plaintiff is entitled to pursue both legal theories until an occasion for an election of remedies arises.” (*Stop Loss Ins. Brokers, Inc. v. Brown & Toland Medical Group*

(2006) 143 Cal.App.4th 1036, 1056 [quoting North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764].) Accordingly, it is not apparent on the face of the pleadings that Plaintiff's negligent repair claim is barred by the economic loss rule.

Therefore, the demurrer is overruled.

#### RULING

Defendants' Demurrer to Plaintiff's Complaint is OVERRULED. Defendants to file their answers to the complaint within 20 days.